



File No.: EXP202309104

RESOLUTION OF FILE OF PROCEEDINGS

From the proceedings carried out by the Spanish Agency for Data Protection and based on the following

FACTS

FIRST: On May 24, 2023, a complaint was filed by A.A.A. with the Spanish Agency for Data Protection against B.B.B. with NIF ***NIF.1 (hereinafter, the complained party). The reasons for the complaint are as follows:

"(...) that the complained party is responsible for a camera located in their residence, which is oriented towards the public road and neighboring houses, having used images from the video surveillance system in a judicial proceeding in which they accuse the complaining party of carrying out unlawful actions against the vehicle of the complained party.

They provide an image of the camera's location, a complaint filed by the complained party against the complaining party in which reference is made to the recording of the public road, and they submit as evidence images from the video surveillance system and an order dated March 21, 2023, by which the COURT OF INSTRUCTION No. X of ***LOCALIDAD.1 determines the opening of Preliminary Investigation Proceedings due to the camera installed by the complained party, which could affect the privacy of the complaining party and their partner.

SECOND: In the framework of IT/05543/2023, the complaint presented was analyzed, and it was decided to DECLINE the same on June 29, 2023, noting that under the current regulations, notification to this AEPD is not necessary to authorize data processing for video surveillance purposes.

In this case, after analyzing the documents provided and the concurrent circumstances, there are no reasonable indications of the existence of an infringement within the jurisdiction of the Spanish Agency for Data Protection, therefore, in accordance with the provisions of Article 65.2 of Organic Law 3/2018, of December 5, on Personal Data Protection and the guarantee of digital rights, IT IS AGREED to decline the complaint.

THIRD: On June 30, 2023, a document classified as was filed, stating that the complained party has installed a video surveillance system, which they consider partially focuses on the public road. In their argument, they state "that there is no justification in the current regulations that allows for continuous capture of the public road."

FOURTH: On December 18, 2023, a Resolution was issued by the Director of this agency in which the following is agreed:

TO GRANT the appeal for reconsideration filed by Ms. ***C.C.C. on behalf of Mr. A.A.A. against the Resolution of this Spanish Agency for Data Protection issued on June 29, 2023, so that the complaint follows the procedure established in Article 65 of Organic Law 3/2018, of December 5, on Personal Data Protection and the guarantee of digital rights.

LEGAL GROUNDS

I

Competence

In accordance with the functions conferred to each supervisory authority by Article 57.1 a), f) and h) of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR) and as provided in Articles 47 and 48.1 of Organic Law 3/2018, of December 5, on Personal Data Protection and the guarantee of digital rights (hereinafter LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to resolve these investigative proceedings.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for Data Protection will be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued in its development and, as long as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

In this case, the complaint is examined regarding the “installation of security cameras that record the public road” (folio No. 1).

In support of their claim, a copy of a complaint filed on October 17, 2021, with the State Security Forces and Corps by B.B.B. (in their capacity as complainant) is provided.

The facts initially presented could imply an infringement of the content of Article 5.1 c) GDPR, if the measure adopted were considered to the pursued end.

In the submitted complaint (documentary evidence 1) it is mentioned that the images have been used to substantiate a series of property damages to the vehicle of the now complained party.

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This Agency has extensively addressed the vandalistic acts committed against third-party property, expressing its condemnation of such acts in any form, considering video surveillance an appropriate means for identifying the alleged perpetrator of damages that are carried out furtively under the belief that there will be no repercussions.

On occasions, the temporary installation of hidden cameras has been permitted for the purpose of capturing images that would allow for the clarification of the facts, under the premise that such images would be made available to the State Security Forces and Corps or the nearest investigating judge to the location of the events.

In accordance with the Jurisprudence of the TS (Supreme Court), it is accepted that video recordings can be submitted as evidence, provided that they do not invade spaces reserved for individuals.

The main reason for obtaining images is justified by property damage inflicted on the vehicle owned by the respondent, parked in a public area, resulting in the judicially submitted images indicating that the main perpetrators are the claimants in this Agency, who have obtained images of such acts as presented in court.

Furthermore, the installation of such devices may be an appropriate measure in response to the recurrence of damage to others' property (e.g., the respondent's vehicle), carried out surreptitiously with the intent to cause harm based on poor neighborly relations in most cases.

Article 65.6 of LO 3/2018, December 5, states:

“After admission for processing, if the responsible party or data processor demonstrates that they have adopted measures to comply with the applicable regulations, the Spanish Agency for Data Protection may resolve to archive the complaint when specific circumstances advise the adoption of other more moderate or alternative solutions to corrective action, provided that no prior investigative actions or any of the procedures regulated in this organic law have been initiated.”

IV

Conclusion

After analyzing the allegations and evidence submitted, it can be concluded that the images provided to this agency had previously been transferred to the State Security Forces and Corps to substantiate the alleged authorship of criminal acts.

It has been confirmed that, once the corresponding complaint was filed by the respondent, they proceeded to reorient the camera from its original location, which determines the temporary nature of the measure adopted.

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Therefore, there are no absolute fundamental rights since they can be restricted or limited during the course of a criminal procedural investigation.

Thus, as noted by the Constitutional Court in its Order 103/82, of March 3, such rights may be subject to restrictions, of greater or lesser extent, provided that they are carried out in compliance with the requirements of the principle of legality, judicial authorization, and the principle of proportionality. The admission of video recordings made by a private individual in a public space as evidence poses no problem since, ultimately, it remains a documentary record in video format that, along with the testimony of its author, constitutes a particularly effective body of evidence that will be freely evaluated by the competent Judge or Court.

It is also recalled the “suitability” of the adopted measure, in such a way that a restrictive ruling of the law would result in a double detriment to the current respondent, as the removal of the camera from its current location would lead to new acts of vandalism against their privately owned vehicle, aside from the corresponding administrative reproach.

In summary, it is noted that capturing images of alleged criminal acts allows for the transfer of those images to the competent authorities, who will be responsible for analyzing and evaluating them; that capturing images in public spaces is not permitted, although in some cases, temporary reorientation is allowed to substantiate the authorship of anyone who carries out furtive attacks under the belief that their actions will have no consequences; and that it is advisable, in any case, to orient the local Security Forces and Corps closest to the location of the events.

Finally, the parties are reminded of the significance of the rights at stake, and they should avoid instrumentalizing this agency in matters related to neighborhood disputes or resolving them in the appropriate judicial instances.

In accordance with the aforementioned, the Director of the Spanish Agency for Data Protection
RESOLVES:

FIRST: TO ARCHIVE the present proceedings.

SECOND: TO NOTIFY this resolution to B.B.B. and the claiming party.

In accordance with Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative process as prescribed by Article 114.1.c) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, and in accordance with Articles 112 and 123 of the aforementioned Law 39/2015, of October 1, the interested parties may optionally file a motion for reconsideration before the Director of the Agency.

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Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly an administrative contentious appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

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Mar España Martí

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